



BOX-F HOLSINGER

Baseline Documentation

Prepared by:

Essex County Greenbelt Association

Shaven Crown



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Acknowledgement of Baseline Documentation

The undersigned, being the grantor/successor under a conservation restriction granted to Essex County Greenbelt Association ("ECGA") with respect to land located at Boxford, MA ("the property"), hereby certifies to ECGA that the accompanying baseline documentation which includes the "relevant documents" listed below, is an accurate representation of the Property and its condition on the date hereof. The undersigned agrees that the conditions documented in said baseline documentation do not necessarily represent the conditions of the Property allowed or required by the conservation restriction, and that ECGA in no way waives any rights, either at or in equity, to enforce the provisions of the conservation restriction.

Executed this ____ day of _____, 2007

Grantor/Successor

Grantor/Successor

Acknowledged by:

Essex County Greenbelt Association

By: *Michael R.*

Relevant documents:

Conservation restriction, recorded 9/6/89

Baseline inspection report, dated 3/1/07

Photos (numbered 01 through 34 and dated 12/12/06)

Photo key, dated 3/1/07

Affidavit, signed and dated, 3/1/07

BOX-F



Greenbelt
Essex County's Land Trust

*Holsinger
Shaven Crown*

June 28, 2013

Dear Ms. Judy Gere,

Shaven Crown

Thank you for giving us permission to visit your property located at off Highland St
Boxford, MA that is subject to a conservation restriction (CR) held by the
Essex County Greenbelt Association. On May 14, 2013 we had a productive visit
and were pleased to see that the property is in full compliance with the terms of the CR.
Enclosed you will find a copy of the CR monitoring report from our recent visit. This
report is yours to keep and file in your original baseline report.

Greenbelt will continue making routine monitoring visits to your property every 1-2
years. You will be contacted prior to our next visit and provided with a monitoring report
shortly thereafter. I suggest you place this and all other future correspondence directly
into the appropriate section of the baseline report for safekeeping and easy access.

Finally, it is our goal to maintain open communications with you regarding your CR. In
an effort to be proactive and avoid any potential violations with the terms of the CR,
please stay familiar with the document and contact us if you have any questions,
especially when you are considering projects that might trigger a review and/or approval
by Greenbelt. I can always be reached at 978-768-7241.

Thank you.

Sincerely,

David Rimmer

David Rimmer
Director of Land Stewardship
dwr@ecga.org

Mike Carbone

Mike Carbone
Stewardship Program Assistant
mgc@ecga.org

cc:

encl.



Greenbelt

**Essex County Greenbelt Association
Conservation Restriction (CR) 2013 Monitoring Inspection Form**

CR ID: BOX-F Inspection Date: 5/14/13 Arrival Time: 11:10 Departure Time: 11:40

Issue Identified: NA

Follow Up: NA

Landowner Name(s): BTA/BOLT

CR Address: Highland St

Was the landowner/landowner representative contacted prior to visit? ☒ Yes ☐ No

Method(s) of contact: Email

Were there any changes to the landowner's contact info and/or preferred method of contact (e.g. email, cell phone, etc)? ☐ Yes* ☒ No

*Explain:

Was the landowner present on the visit? ☐ Yes ☒ No

CR Monitor(s) name(s): Mike Carbone (ECGA)

Current Land Use: (check all that apply)

☐ Residential ☐ Agricultural ☐ Forestry ☒ Public Recreation ☐ Habitat Wetland
☐ Horses/Livestock ☐ Other:

Inspection Activities:

Were CR boundaries inspected? ☒ Yes ☐ No ☐ N/A

Did you observe any survey monuments/corners (e.g. SB/CBs, IPs, drill holes) along the CR boundaries? ☐ Yes* ☒ No

*PLEASE annotate approximate location(s) AND corner type(s) on your route map

Were the boundaries of building/use area envelope(s) inspected? ☐ Yes ☐ No ☒ N/A

***Natural Changes Observed:** (since last year's monitoring visit)

☐ Storm Damage ☐ Invasive Exotics ☐ Flooding ☐ Erosion ☐ Other ☒ N/A

*Explain:

***Man-Made Activities/Changes Observed:** (since last year's monitoring visit)

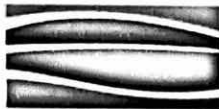
☐ Dumping ☐ Material Storage ☐ Clearing ☐ Abutter Encroachment
☐ Stone Wall Alteration ☐ New Structure ☐ New Road/Trail ☐ Dredging/Filling
☐ Excavation ☐ ATVs ☐ Other ☒ N/A

*Explain:

Did you observe any changes in adjacent land use that could cause possible impacts to the CR?

☐ Yes* ☒ No *Explain:

Anything Else of Interest Observed? Goshawk nest.



Greenbelt

Did the CR landowner have any questions or plans for the future to be discussed with Greenbelt?
Explain: No.

Did you observe any activities/management practices in need of further discussion by Greenbelt with the landowner? ☐ Yes* ☒ No

*Explain:

Data collected during monitoring inspection:

☒ Photos #2 ☐ GPS Track ☐ GPS Waypoint(s) ☐ N/A

Miscellaneous:

Any other pertinent info you would like to include in this report and/or continuation from questions above:

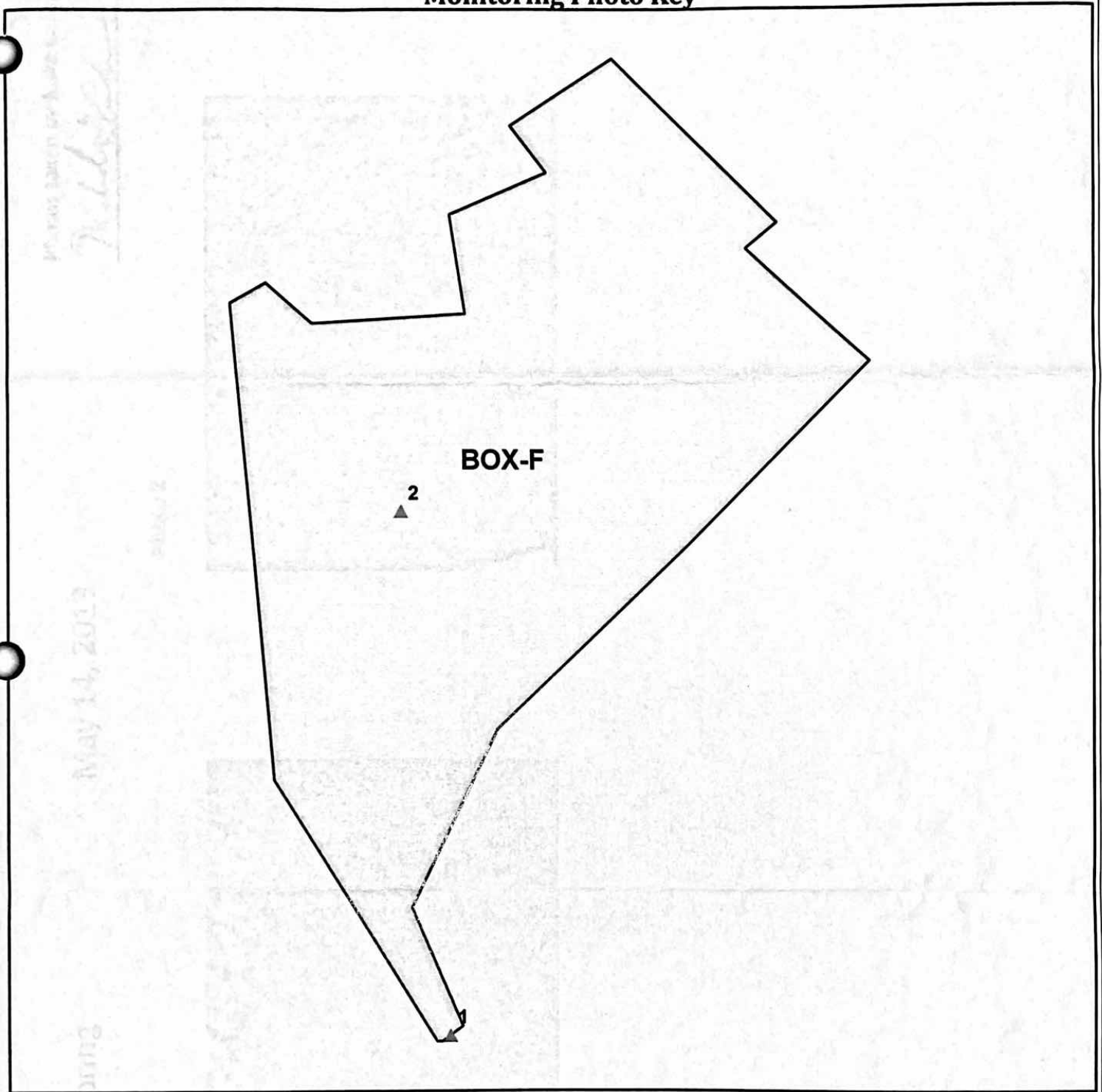
Monitor Signature: *Michael A. [Signature]*

Title: Stewardship Program Asst.

Date: 6-28-13

Reminder: Your monitoring visit is complete ONLY AFTER you have signed and dated all monitoring paperwork (Report Form, Route/Photo location map, Photo Sheet) and the originals have been delivered to Greenbelt.

**BOX-F Holsinger
Conservation Restriction
Monitoring Photo Key**



0 400 800 Feet



Legend

- ▲ Photopoints Spring 2013
- Greenbelt Conservation Restriction



Greenbelt
Essex County's Land Trust

Source data obtained from survey plans, MassGIS, and Global Positioning Systems (GPS). Boundary lines, photo points and all other property attributes are approximate.

Map created by Essex County Greenbelt June 2013

BOX-F CR Monitoring
Photos

May 14, 2013

Photos taken by Mike Carbone

Michael Carbone

Photo 1

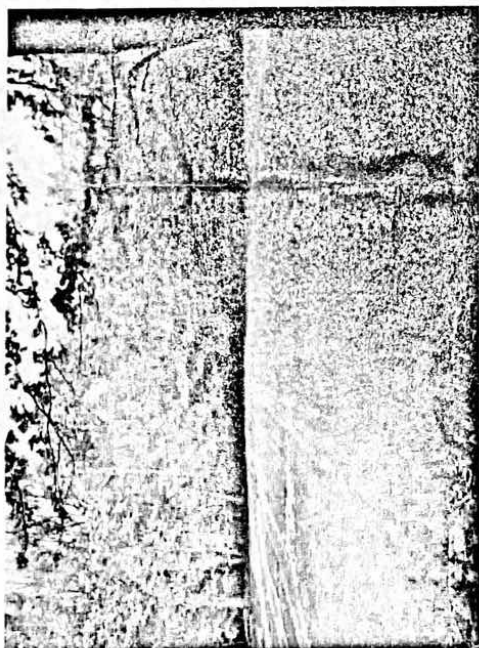
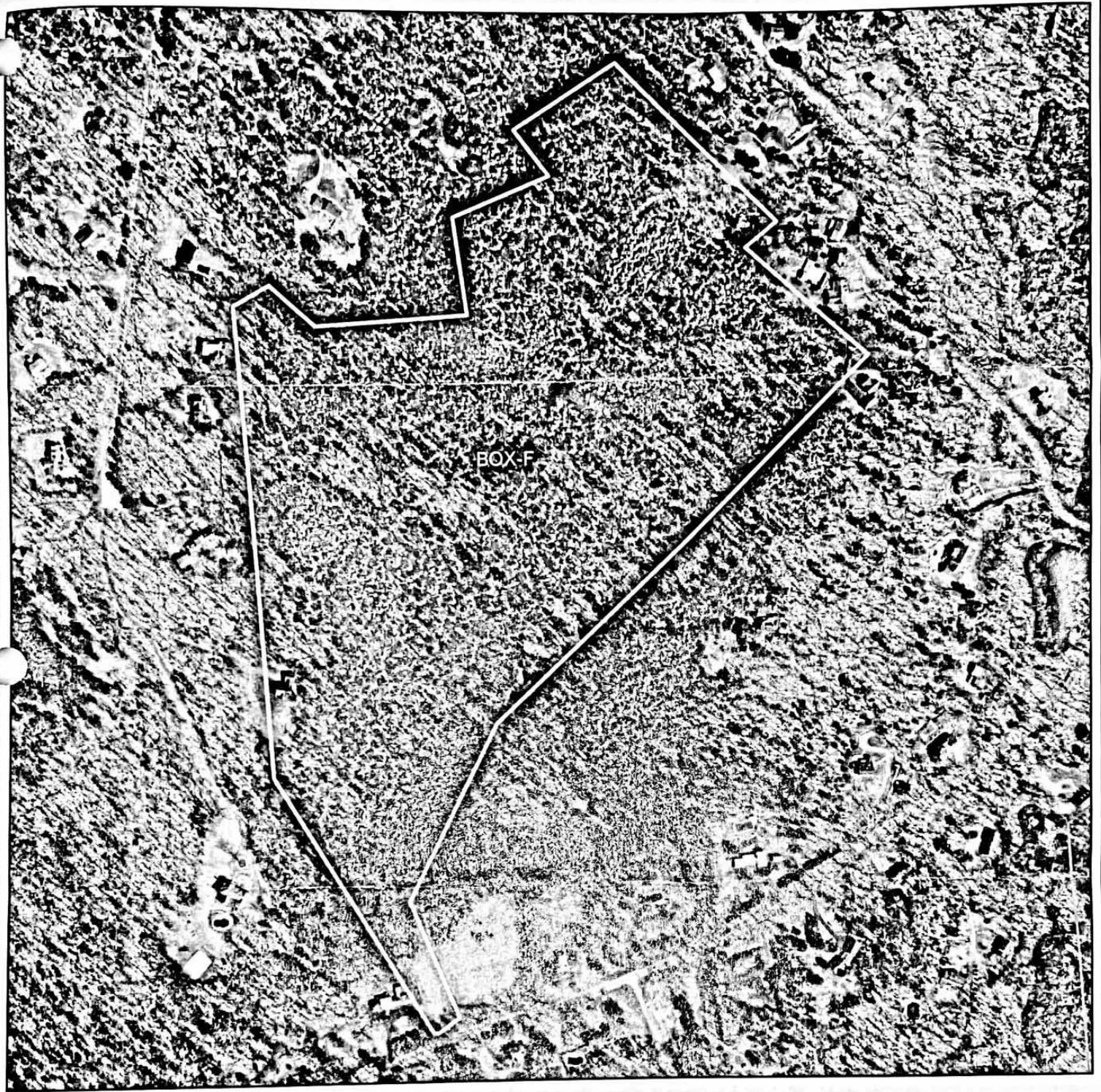


Photo 2



BOX-F Holsinger



0 500 1,000 Feet



Legend

- GB Fee
- GB CRs



Source data obtained from survey plans, MassGIS, and Global Positioning Systems (GPS). Boundary lines, photo points and all other property attributes are approximate.

Map created by Essex County Greenbelt March 2013



Greenbelt
Essex County's Land Trust

**Essex County Greenbelt Association
Conservation Restriction (CR) 2019 Monitoring Inspection Form**

Greenbelt CR ID: BOX-F BTA/BOLT Holsinger/Shaven Crown Woods

CR Recording Info: Southern Essex Registry of Deeds Book 10283 Page 26

CR Address: Off Highland Road, Boxford, MA

CR Acreage: 35 Acres.

Inspection Date: 4/4/2019 Arrival Time: 8:00 Departure Time: 9:00

Issue Identified: NA

Follow Up: NA

Landowner Name(s): BTA/BOLT

Landowner Mailing Address: P.O. Box 95, Boxford, MA 01921

Was the landowner/landowner representative contacted prior to visit? ☐ Yes ☒ No

Method(s) of contact: Choose One

Were there any changes to the landowner's contact info and/or preferred method of contact (e.g. email, cell phone, etc)? ☐ Yes* ☒ No

*Explain:

Was the landowner present on the visit? ☐ Yes ☒ No

CR Monitor(s) name(s): Mike Carbone

Current Land Use: (check all that apply)

☐ Residential ☐ Agricultural ☐ Forestry ☒ Public Recreation ☒ Habitat Wetland
☐ Horses/Livestock ☐ Other:

Inspection Activities:

Were CR boundaries inspected? ☒ Yes ☐ No ☐ N/A

Did you observe any survey monuments/corners (e.g. SB/CBs, IPs, drill holes) along the CR boundaries? ☐ Yes* ☒ No

*PLEASE annotate approximate location(s) AND corner type(s) on your route map

Were the boundaries of building/use area envelope(s) inspected? ☐ Yes ☐ No ☒ N/A



BTA/BOLT's trail system. Jennie and Jeff intend to pursue follow up with an informal meeting with new abutters to discuss potential collaboration on trails and then bring to the attention of the BTA/BOLT board.

7. Present use of property:

Trail system is used for passive recreation year round by pedestrians and bicyclists. Permitted uses include hiking, horseback riding, cross-country skiing, and snowshoeing.

8. Maintenance; upkeep (leaving natural, trail maintenance):

Trails receive regular trail maintenance, and, with an aging forest, considerable time is spent clearing fallen limbs and branches, with heavier cleanup of fallen trees following winter snowstorms.

9. Note any possible violations or encroachments: None observed at time of monitoring

10. Monitor comments/intended follow-up, if any:

Suggest putting up an additional trail directional arrow on a tree facing west at the southern end of the short trail between the two houses at the end of Berry Patch Lane. The arrow will help clarify that the foot trail to be followed to Berry Patch Lane is along a western side of the fence between the two houses.

11. Describe any rare of unusual plant or animal life or sign thereof:

12. Additional remarks (particularly as to the present condition of the property):

None

13. Time spent on property: 2 hours

14. Names of monitoring team members: Jeff Hixon, Jennie Bridge

15. Inspection team leader: Jennie Bridge

Jennie Bridge

[Signature]

1. Exposed tree roots of tree on Ericson Woods loop (Jeff Hixon, 11/10/19).

2. Imprint of deer bedding in leaves on top of wooded hillock on last leg of monitoring, south eastern are of Ericson Woods above and near wetland (Jeff Hixon, 11/10/19):

on that slope facing the trail, and both with exposed roots at the time of inspection. The roots were not exposed to the survey plan and ground conditions at the time of inspection.

Accepted by Jennie Bridge
Jennie Bridge
4/14/2019



Greenbelt
Essex County's Land Trust

***Man-Made Activities/Changes Observed:** (since last year's monitoring visit)

- ☐ Dumping ☐ Material Storage ☐ Clearing ☐ Abutter Encroachment
☐ Stone Wall Alteration ☐ New Structure ☐ New Road/Trail ☐ Dredging/Filling
☐ Excavation ☐ ATVs ☐ Other ☒ N/A

*Explain:

Did you observe any changes in adjacent land use that could cause possible impacts to the CR?

☐ Yes* ☒ No *Explain:

Anything Else of Interest Observed? No.

Did the CR landowner have any questions or plans for the future to be discussed with Greenbelt?
Explain: No.

Did you observe any activities/management practices in need of further discussion by Greenbelt with the landowner? ☐ Yes* ☒ No
*Explain:

Data collected during monitoring inspection:

☒ Photos # 3 ☐ GPS Track ☐ GPS Waypoint(s) ☐ N/A

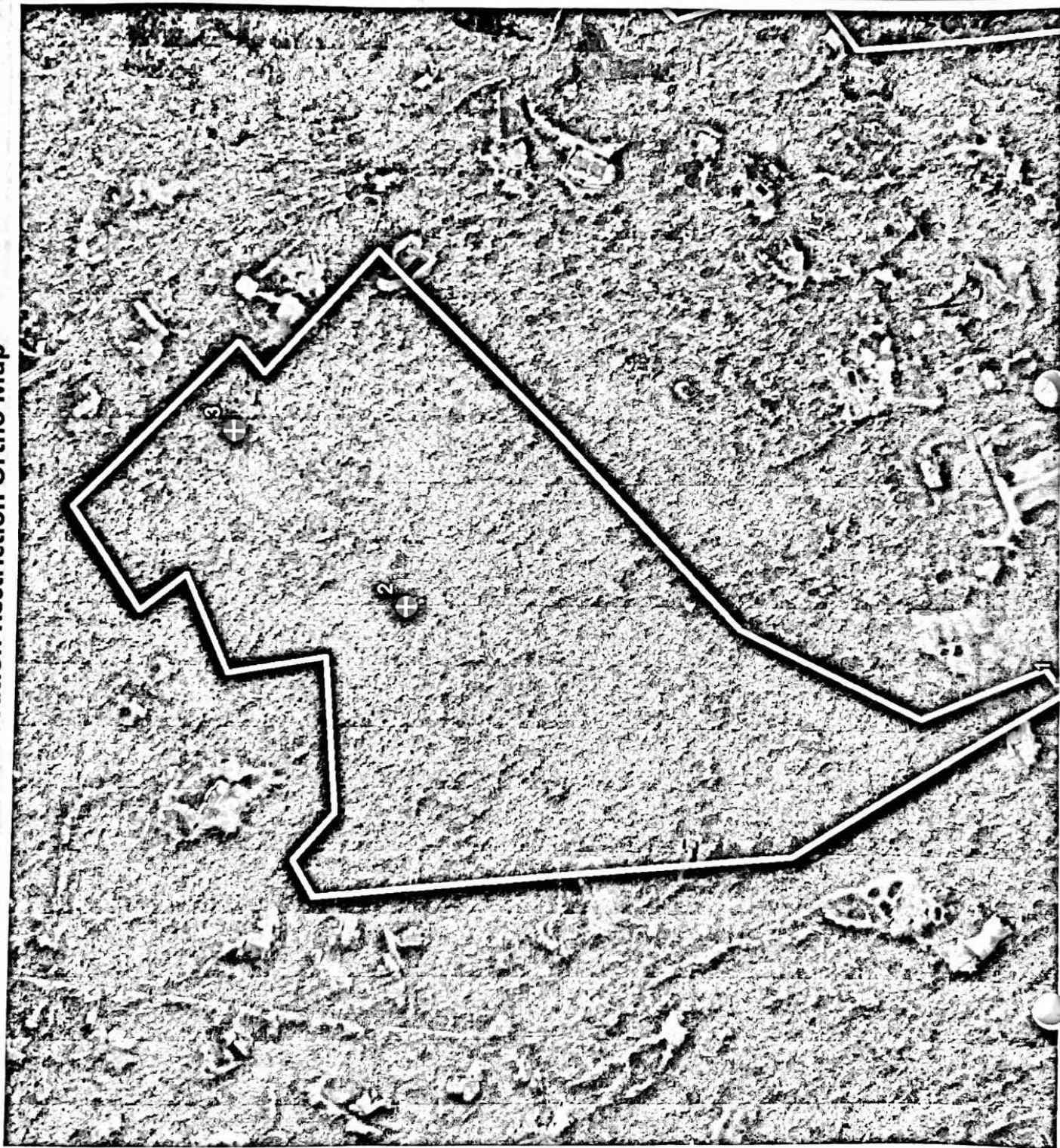
Miscellaneous:

Any other pertinent info you would like to include in this report and/or continuation from questions above: Parking lot, trails, and boardwalk crossing were all in good shape at the time of my visit. Our GIS shapefile is not accurate to the survey plan and ground conditions at the property and we will work to correct that.

Monitor Signature: Michael Bark Assistant Director of 4/16/2019
Title: Land Stewardship Date:

Reminder to Volunteer Monitors: Your monitoring visit is complete ONLY AFTER you have signed

BOX-F Holsinger CR
Conservation Restriction Ortho Map





Baseline Inspection Report

CR Key: BOX-F

Property Name: Holsinger
Date of Inspection: 12/12/06
Recorded: 9/6/89
Plan Book/Page (if applicable):

Location: Highland St
Acreage: 35.2
Book/Page: 10283/26

Grantor(s): Jerry Holsinger
Grantor Address: Boxford, MA

Owner name (if different from grantor): BTA-BOLT
Owner address: PO Box 95, Boxford, MA 01921

1. Did the owner accompany you on the inspection? NO
How was the notice of visit given, or permission obtained?
Letter

2. Describe the details of your inspection (where you walked, etc):
Kate Walton and Dave Rimmer walked the perimeter of the property, which is characterized almost 100% by a mixed species woodland, with some areas dominated by pines and others with mixed hardwoods. The restricted area has publicly accessible trails and appeared undisturbed.

3. Present use of restricted property:
None

4. Note any observed violations of the terms of the conservation restriction:
None

5. Present use of abutting properties:
Residential

6. Describe any rare or unusual plant or animal life, or signs of:
None but northern goshawks once nested at the site.

7. Additional remarks:
None

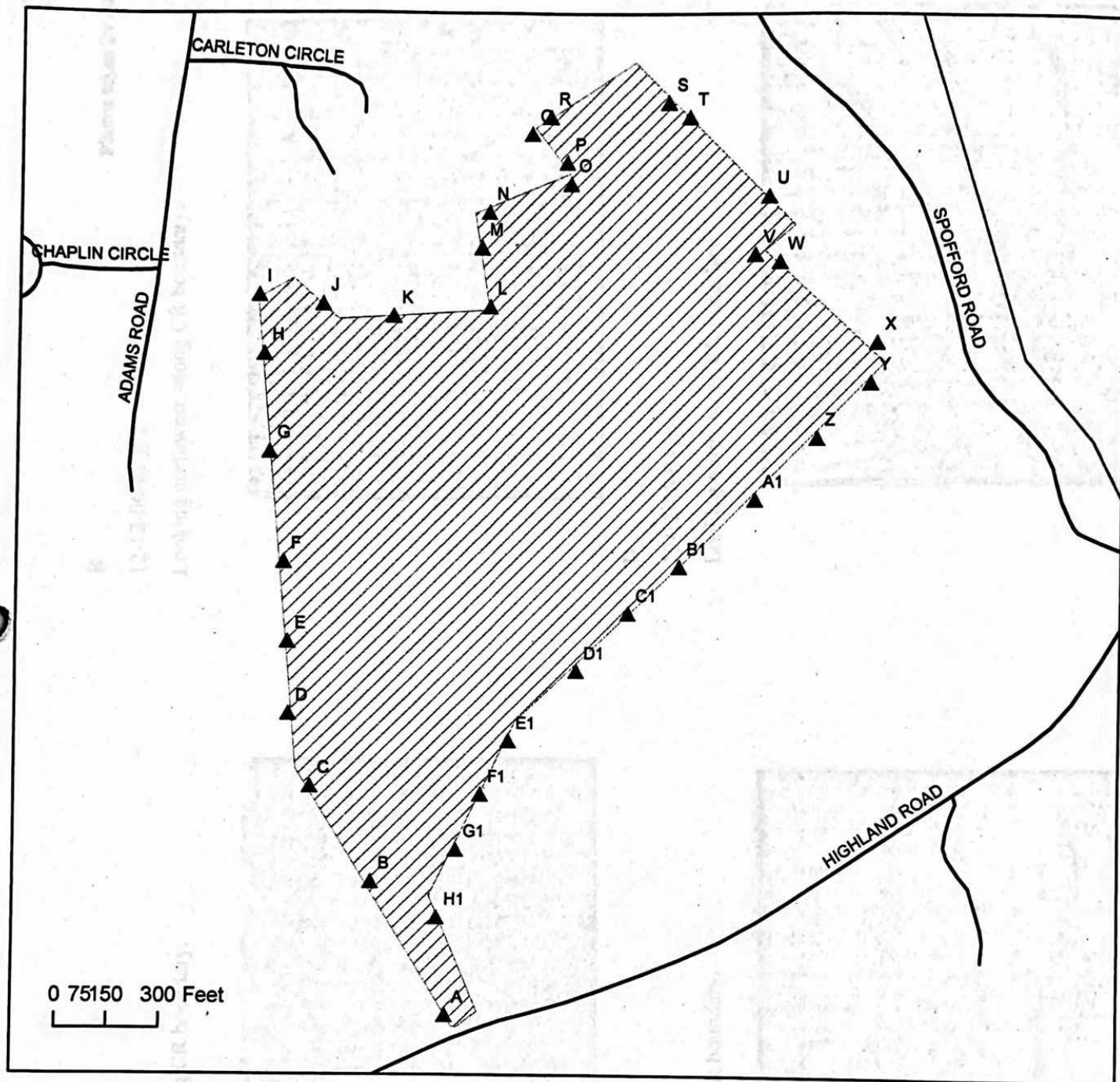
Names of those on site inspection: David Rimmer, Kate Walton
Time spent on property: 90 minutes

Inspection team leader (name and signature): David Rimmer

BOX-F Holsinger Conservation Restriction

Baseline Photo Key

35.27 Acres



Legend

Photo Points

- ▲ BOX-F
- ▨ Greenbelt CRs
- ▭ Towns
- Roads



Map produced by Essex County Greenbelt Association.
Source data obtained from survey plans and Global Positioning Systems (GPS). Boundary lines and all other property attributes are approximate.

March 1, 2006

A

12-12-06-01.jpg

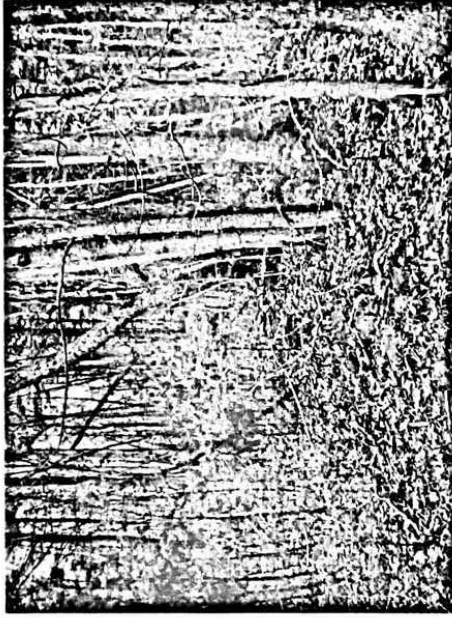
Looking northwest, along CR boundary.



B

12-12-06-02.jpg

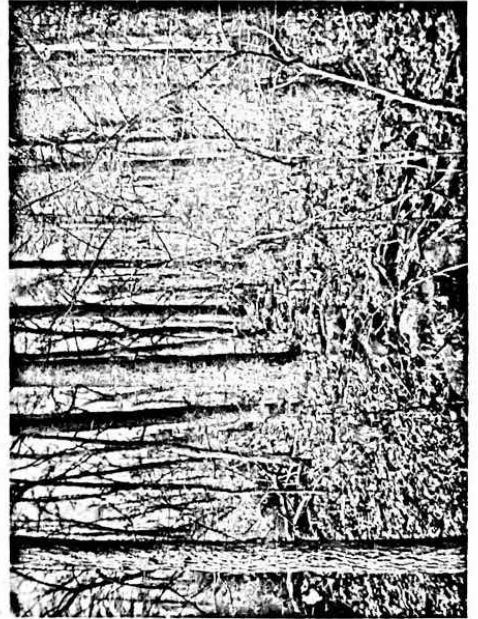
Looking northwest, along CR boundary.



C

12-12-06-03.jpg

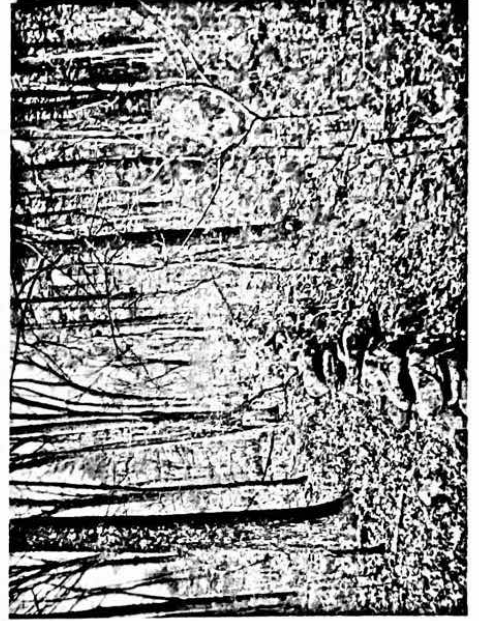
Looking north, along CR boundary.



D

12-12-06-04.jpg

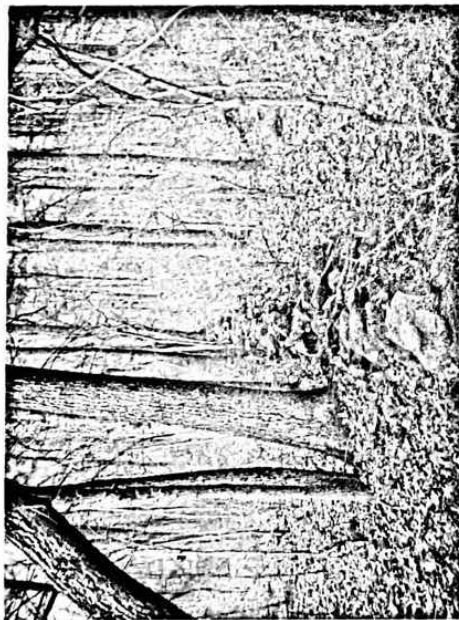
Looking north, along CR boundary.



E

12-12-06-05.jpg

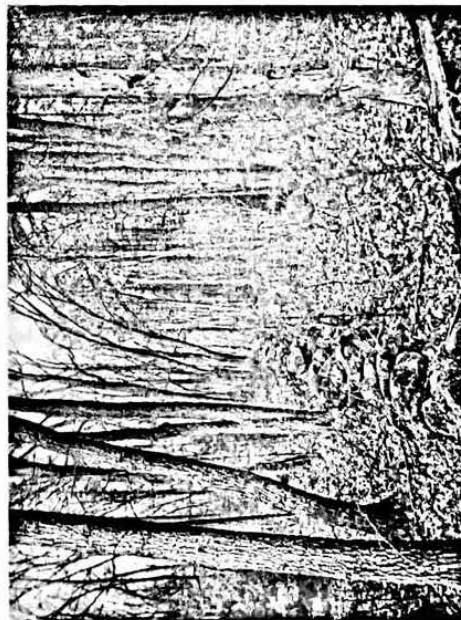
Looking north, along CR boundary.



G

12-12-06-07.jpg

Looking north, along CR boundary.



F

12-12-06-06.jpg

Looking north, along CR boundary.



H

12-12-06-08.jpg

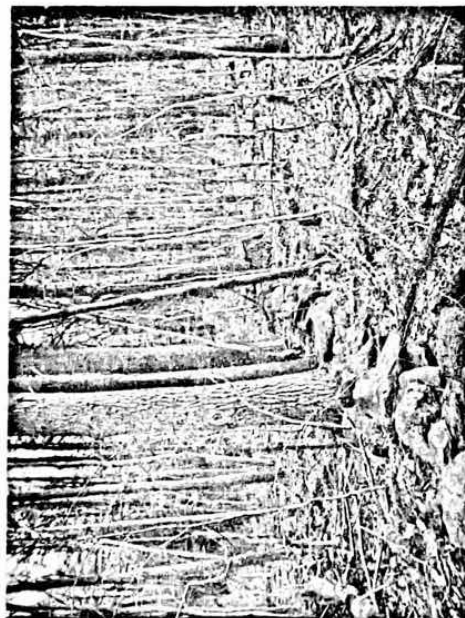
Looking north, along CR boundary.



I

12-12-06-09.jpg

Looking northeast, along CR boundary.



K

12-12-06-11.jpg

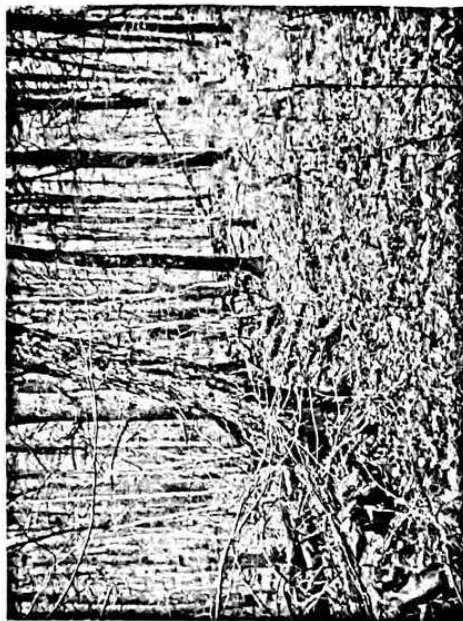
Looking east, along CR boundary.



J

12-12-06-10.jpg

Looking southeast, along CR boundary.



L

12-12-06-12.jpg

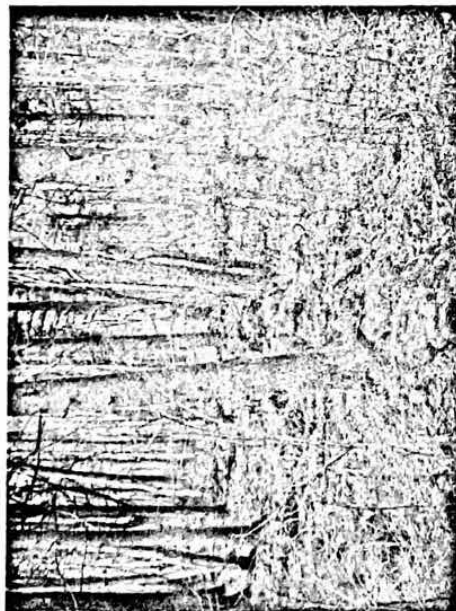
Looking north, along CR boundary.



M

12-12-06-13.jpg

Looking north, along CR boundary.



O

12-12-06-15.jpg

Looking southwest, along CR boundary.



N

12-12-06-14.jpg

Looking northeast, along CR boundary.



P

12-12-06-16.jpg

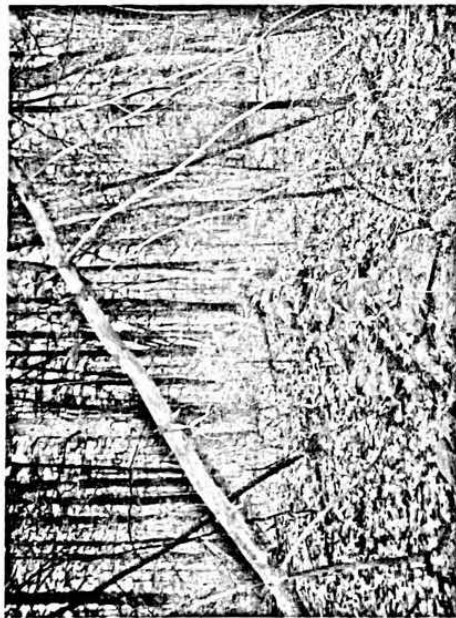
Looking northwest, along CR boundary.



Q

12-12-06-17.jpg

Looking northwest, along CR boundary.



S

12-12-06-19.jpg

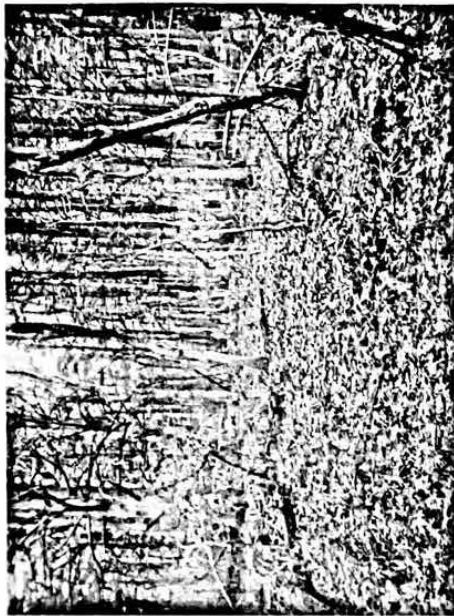
Looking northwest, along CR boundary.



R

12-12-06-18.jpg

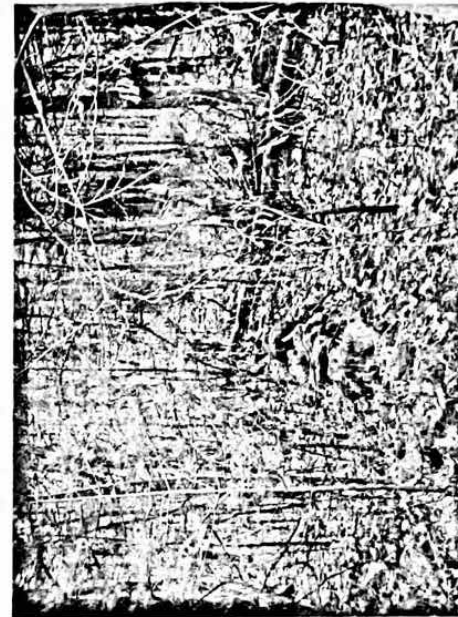
Looking northeast, along CR boundary.



T

12-12-06-20.jpg

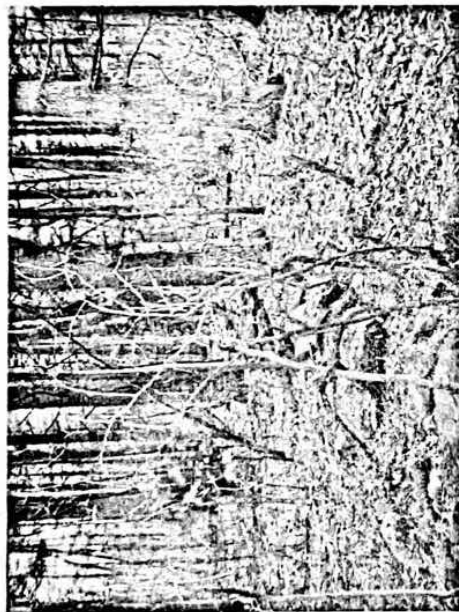
Looking southeast, along CR boundary.



U

12-12-06-21.jpg

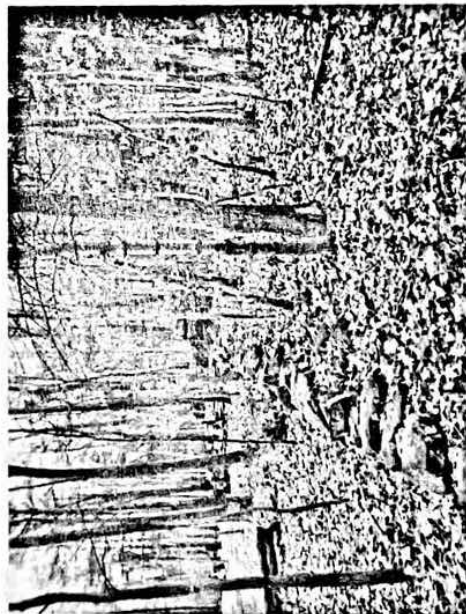
Looking southeast, along CR boundary.



W

12-12-06-23.jpg

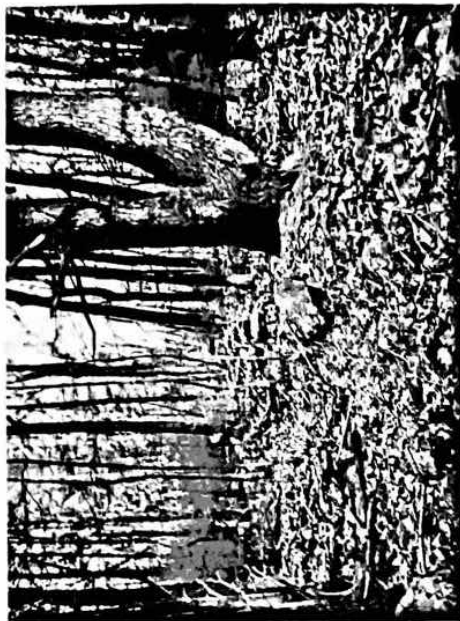
Looking southeast, along CR boundary.



V

12-12-06-22.jpg

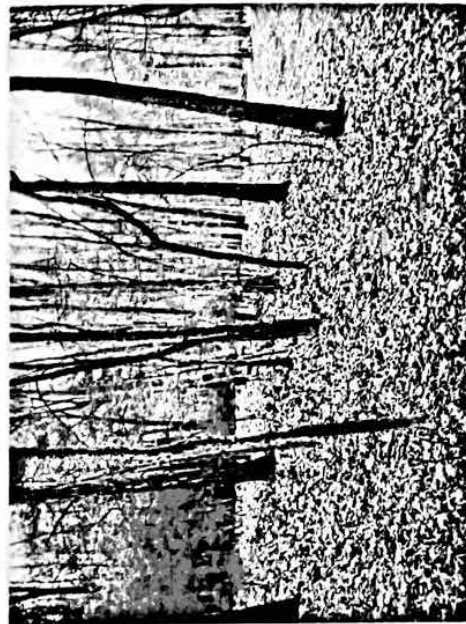
Looking northeast, along CR boundary.



X

12-12-06-24.jpg

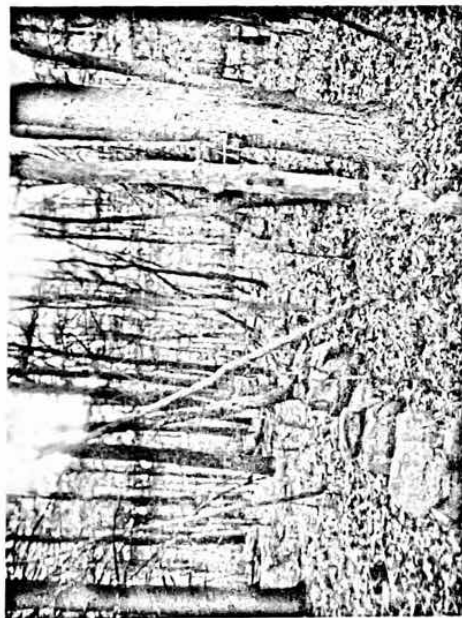
Looking northwest, along CR boundary.



Y

12-12-06-25.jpg

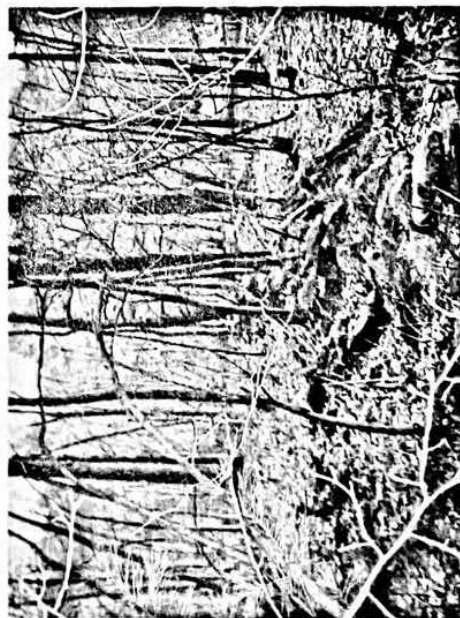
Looking southwest, along CR boundary.



A1

12-12-06-27.jpg

Looking southwest, along CR boundary.



Z

12-12-06-26.jpg

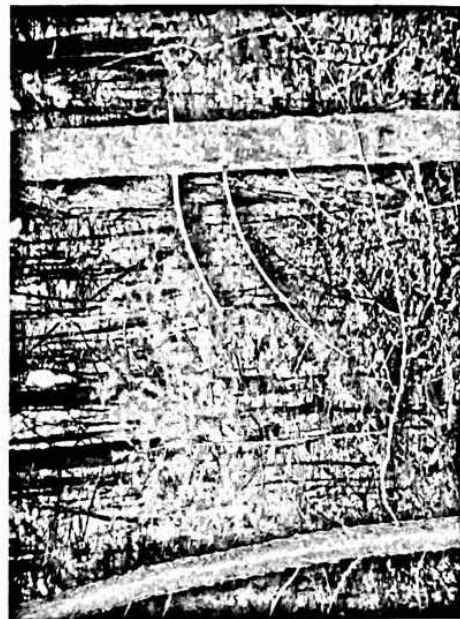
Looking southwest, along CR boundary.



B1

12-12-06-28.jpg

Looking southwest, along CR boundary.



C1

12-12-06-29.jpg

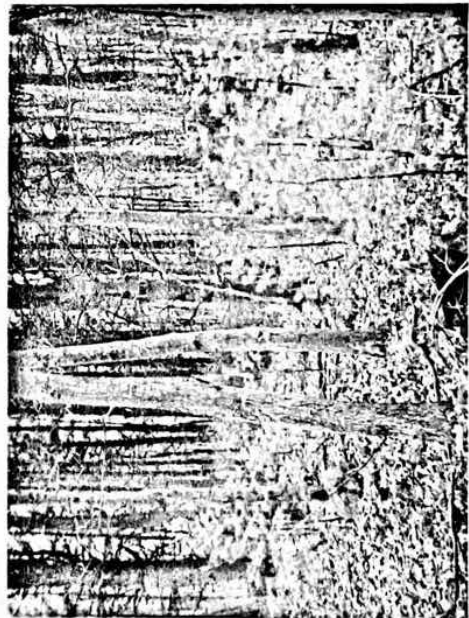
Looking southwest, along CR boundary.



E1

12-12-06-31.jpg

Looking southwest, along CR boundary.



D1

12-12-06-30.jpg

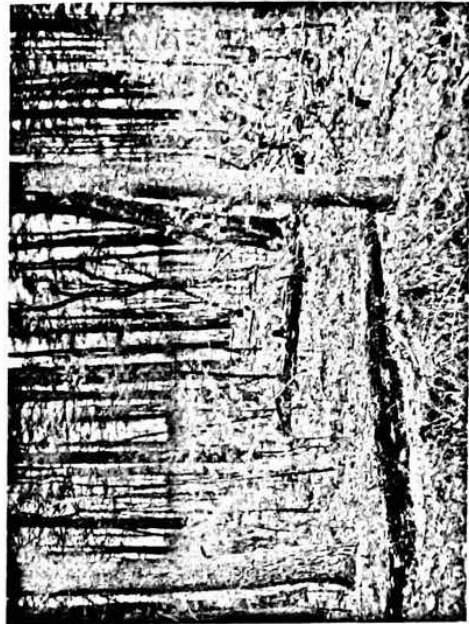
Looking southwest, along CR boundary.



F1

12-12-06-32.jpg

Looking southwest, along CR boundary.



H1

12-12-06-34.jpg

Looking south, along CR boundary.



G1

12-12-06-33.jpg

Looking southwest, along CR boundary.





CR Photography Affidavit

I, David Rimmer, hereby certify that:

I am employed by Essex County Greenbelt Association ("ECGA") as a Director of Land Stewardship and that one of the responsibilities of my office is the compilation of baseline documentation and data and the monitoring of properties subject to conservation restriction ("CR") held by ECGA;

That on 12/12/06, I inspected the Holsinger CR property located at Boxford, MA and took 34 photographs ("the photographs"), numbered 01 through 34, which were marked with the number, location, date and photographer's signature; and

That the photographs fairly and accurately depict the property as it appeared on the date the photographs were taken; and

That, in addition to printed versions signed by me, the photographs were recorded on a non-rewriteable compact disc signed by me and titled BOX-F;12/12/06 under the files named on the attached sheet, "Exhibit A", and that the photographs are original and have not been altered in any way.

Title: Director of Land Stewardship

Date: 3/1/07

On this 1st day of March, 2007, before me, the undersigned notary public, personally appeared David Rimmer (name of document signer), proved to me through satisfactory evidence of identification, which were personal knowledge with identity, to be the person whose name is signed on the preceding or attached document, and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of (his) (her) knowledge and belief.

(official signature and seal of notary)

My commission expires February 1st, 2013



BECKY P. DEAN
NOTARY PUBLIC
COMMONWEALTH of MASSACHUSETTS
MY COMMISSION EXPIRES
FEBRUARY 01, 2013



Digital Photographic Images; Chain of Custody Record
(to accompany photo affidavit)

Key: BOX-F

Property: Hoslinger

Address: Highland St.

Town: Boxford

File Names: see attached list "Exhibit A"

Name	Procedure	Date	Location	Signature
David Rimmer	Downloaded from camera	12/12/06	Greenbelt photo library	<i>DR</i>
David Rimmer	Copied to CD-R	12/19/06	CD-R; Fireproof cabinet	<i>DR</i>



"Exhibit A"
BOX-F
Hoslinger
BOXFORD, MA

Baseline photo file names

Saved on CD-R: *BOX-F; 12-12-06*

11-16-05-	01	.jpg
11-16-05-	02	.jpg
11-16-05-	03	.jpg
11-16-05-	04	.jpg
11-16-05-	05	.jpg
11-16-05-	06	.jpg
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11-16-05-	26	.jpg
11-16-05-	27	.jpg
11-16-05-	28	.jpg
11-16-05-	29	.jpg
11-16-05-		.jpg

All - Shaven Crown

emails - July 16, 2015

Here is what I sent Sean Fennell. I will forward Dave Rimmer's answer with the CR attachment as well.

N

From: Mymol@aol.com

To: sfennell@fennell-engineering.com

CC: amsbox@comcast.net, dwr@ecga.org

Sent: 7/16/2015 2:57:06 P.M. Eastern Daylight Time

Subject: Shaven Crown CR

July 16, 2015

Dear Mr. Fennell,

You have been reviewing an out of date Conservation Restriction. Please contact Essex County Greenbelt Association which holds the current CR for further information.

In any case, we stand by our plans. Please be advised that we disagree with your interpretation of the conservation restriction, and will be making no adjustments to our use of our property.

Natasha Grigg, president, BTA/BOLT, Inc.

cc: Angela Steadman, BTA/BOLT, Inc.

David Rimmer, Land Management, ECGA

From: dwr@ecga.org

To: sfennell@fennell-engineering.com

CC: amsbox@comcast.net, Mymol@aol.com

Sent: 7/16/2015 5:42:19 P.M. Eastern Daylight Time

Subject: Re: Shaven Crown CR

Dear Sean,

Natasha Griggs has suggested it might be useful for you and I to speak to clarify some of the questions you have about the BTA BOLT property known as Shaven Crown Hill. I'd prefer to have a conversation instead of an email exchange, so feel free to contact me anytime. However, the email you wrote on 7/15/15 was shared with me, and I will just offer a couple of comments:

1. When reading any CR, many activities are prohibited but it is critical to read the reserved rights because certain prohibited activities are allowed in the reserved rights. Reserved rights always trump prohibited activities.
2. The operative CR on the land now owned by BTA BOLT is attached here. You were referring to a 1989 CR between Greenbelt and the Holsingers that was updated in 1995 when BTA BOLT acquired the property from the Holsingers. The 1995 CR is basically the same as the 1989 CR, with some updated language and terms.

wrong CR

Book
Page

13344
376-386

valid CR

1.

- 
2. BTA BOLT has the right as the landowner to allow public use without any requirement to inform neighbors or others. What you were referring was language in 1989 CR that states that the grantee (Greenbelt) must inform the grantor (Holsinger) before entering the premises to monitor the land for compliance with the CR. Standard language. And the other language about public access and neighbors using trails was there because the land was owned privately at that time by the Holsingers. That land was later acquired by BTA BOLT, an updated CR completed, so now the owner and CR grantor is BTA BOLT. See section 4 about public access. Its very clearly allowed.
 3. BTA BOLT is allowed by the CR (Pg 3, 2.a) to place signs on the property.
 4. It is Greenbelt's interpretation that BTA BOLT has the right on their land subject to the CR to place boundary markers as they see fit.

I hope this helps but I am still willing to discuss further in a conversation.

Regards, Dave

David Rimmer
Director of Land Stewardship
82 Eastern Avenue
Essex, MA 01929
dwr@ecga.org
(978) 768-7241 x14

05
Jerry L. Holsinger

of 30 Highland Road, Buxford, Mass.

for consideration paid, Four Hundred Sixty-Five Thousand (\$465,000.00) Dollars

grant to Hector A. Rodriguez and Ann M. Rodriguez, husband and wife as Tenants by the Entirety of 30 Highland Road, Buxford, MA

with quitclaim covenants

A certain parcel of land with the buildings thereon shown as Lot 2 on a plan entitled "Plan of Land in Buxford, MA., Property of Estate of Mabel L. Greenier" dated October 28, 1980 by Hancock Survey Associates, Inc., recorded with Essex South District Deeds in Plan Book 162, Plan 49, bounded and described as follows:

SOUTHERLY by the Northerly line of Highland Road one hundred and no/100 (100.00) feet;

EASTERLY by Lot 1 on said plan, five hundred fifty-three and 18/100 (553.18) feet;

SOUTHERLY by said Lot 1 and by land shown on said plan as of Littlefield, in four courses measuring respectively, four hundred ninety-five and 52/100 (495.52) feet, one hundred sixty-six and 20/100 (166.20) feet, one hundred twenty-seven and 72/100 (127.72) feet and two hundred three and 91/100 (203.91) feet;

EASTERLY by land shown on said plan as of Bakewell, by two courses measuring respectively, two hundred forty and 55/100 (240.55) and one hundred fifty-seven and 10/100 (157.10) feet;

NORTHERLY by the same, by two courses measuring respectively, seventy-seven and 23/100 (77.23) feet and twelve and no/100 (12.00) feet;

NORTHEASTERLY by the same, by two courses measuring respectively, two hundred eighty-four and 38/100 (284.38) feet and one hundred thirty-one and 92/100 (131.92) feet;

NORTHWESTERLY by Lot 3 on said plan by two courses measuring respectively, six hundred twenty-four and 48/100 (624.48) feet and six hundred twenty and no/100 (620.00) feet; and

WESTERLY by said Lot 3 six hundred fifty and no/100 (650.00) feet.

Containing 15.73 acres more or less according to said plan.

Said premises are conveyed together with a right of way reserved by deed recorded with said Deeds in Book 5952, Page 170 and any and all rights, title and interest, implied or otherwise, in and to the cart path shown on said plan.

Being a portion of the premises conveyed to me by deed recorded in said Registry in Book 9553, Page 156.

Witness my hand and seal this 28th day of December, 1993.

Jerry L. Holsinger
Jerry L. Holsinger

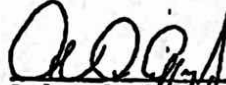


COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

December 28, 1993

Then personally appeared the above-named Jerry L. Molsinger
and acknowledged the foregoing instrument to be his/~~her~~/their free
act and deed, before me



Andrew A. Chaffrey, Jr.

Notary Public

My Commission Expires: 06/12/98

STATE OF COLORADO



FULL RELEASE OF RIGHT OF FIRST REFUSAL

WHEREAS, Jerry L. Holsinger, hereinafter "Holsinger") is the former owner of land in Boxford and is the grantee of certain rights pursuant to an Agreement of Right of First Refusal dated February 11, 1981, recorded with the Essex South District Registry of Deeds in Book 6791, Page 437 (hereinafter, "First Refusal").

WHEREAS, John J. Greenler, individually and as Executor under the will of Mabel L. Greenler (hereinafter, "Estate") granted to Holsinger a Right of First Refusal with respect to the sale, gift, or other disposition of or transfer to any party other than an heir of Mabel L. Greenler, of the land in said Boxford shown as Lot 1 on a plan entitled, "Plan of Land in Boxford, MA, Property of the Estate of Mabel L. Greenler", dated October 28, 1980, by Hancock Survey Associates, Inc., recorded with said Registry of Deeds in Plan Book No. 162, Plan 49.

WHEREAS, said Estate now wishes to convey the remaining portion of said Lot 1, referred to hereinafter as Lot 1A, as more particularly described in a plan entitled, "Plan of Land in Boxford, MA, Property of the Estate of Mabel L. Greenler", dated October 21, 1992 by Donahue and Parkhurst, Inc., recorded with said Registry in Plan Book 279, Plan 8 (hereinafter "Plan") to any ready, willing, and able Buyer.

NOW THEREFORE, in consideration of the foregoing:

1. Holsinger hereby waives and releases any claim of right to first refusal on any transaction as to Lot 1A and further waives and releases any claim now and forever under said first refusal with respect to said Lot 1A.

Witness my hand and seal this 15th day of June, 2012.

Jerry L. Holsinger
Jerry L. Holsinger

STATE OF COLORADO

County:

Date: 6-15-12

Then personally appeared the above named Jerry L. Holsinger, proved to me through satisfactory evidence of identification, which was his driver's license, to be the person described in and who executed the foregoing instrument and acknowledged that he executed it as his free act and deed, before me.

Kyle Bolitho
Notary Public:

My Commission Expires: 1-27-13



Shaven Crown land – 35 acres and abutting 15 acres owned by Mr. Mals June 2003

Dear Judy/Nancy, I have reviewed the Shaven Crown file which appears to contain most of the title information regarding the parcel and the driveway right of way (which appears to be 14' wide). First, I'm not sure the driveway access is relevant to the development of the Mals property because that parcel has its own 100' frontage on Highland Road. So access to any 40B development could be over the parcel's own frontage and not rely on the existing driveway on our property at all.

Anyway, according to the information we have (more title research would probably have to be done at the right time if necessary), the only clearly reserved right to use the driveway over our property is stated in the Greenbelt CR which references a plan recorded with the CR showing the 14' driveway. Well, it is appropriate that the CR mention the driveway access but the CR does not convey and really cannot convey property or easement rights (it only limits rights/activities). Further, the showing of the easement on the plan alone is not enough to convey/reserve an easement. The CR is between Greenbelt and the Holsingers and was done in 1989. When the property was conveyed to BTA/BOLT, it was conveyed subject to the CR, but not subject to any easement right to use the existing driveway. This was a mistake. The conveyance to BTA/BOLT should have been subject to the adjacent property owner's right to use the existing driveway. The Greenbelt CR cannot convey, reserve or enforce such a easement right. There is reference in the title to Shaven Crown of a valid right of way in a previous deed of Mabel Greenler, this easement is 35' wide, but is in a different location than the current driveway and does not resemble in any way the current driveway, so in my opinion, this valid easement does pertain to the driveway.

To sum up, I cannot see any valid enforceable right of way or driveway easement over our property. Therefore, the Mals probably misunderstand that they have a driveway easement but are really trespassers using the current driveway under our good graces. The proper way to reserve this access would be for BTA/BOLT as the property owner to convey a grant of easement to the Mals for the driveway over our property. This would be unlikely? Since the Mals are trespassers, any successor in title 40B developer to the Mals would be a trespasser and would be denied access here. But even if there was a valid driveway easement, it is not wide enough to support a public way to a 40B development (50' minimum required). But as I mentioned earlier, I don't think the 40B developer would need the driveway since the Mals property has its own frontage on Highland.

Also the Holsinger's deed to Rodriguez does not contain any language limiting further development and the Rodriguez's deed to Mals does not contain any such language limiting development, but the lot is a pork chop with a dwelling so further subdivision is prohibited under our zoning bylaw. 40B would sidestep this bylaw.

If you believe the situation to be different regarding the driveway, let me know and we can talk about it or I can do additional research.

Robert T. Ford

How did you come to hear about this project and would it serve us to talk further to whoever contacted you?

Nancy:

Both Peter Delaney and Barbara Jessell told me that someone (the prospective new owner?) is scheduled to appear before the Housing Partnership next week to discuss this project. I asked Len Phillips about it at Ken's party, and my memory of his answer is a little fuzzy...but, I believe he said that someone had made an informal inquiry of the planning board on rules for doing a 40b project on porkchop lots. Call Len and ask him to clarify.

Also...check with Gini Havey and see if there was a listing of this home for sale. A neighbor of mine said they saw a "for sale" sign a little bit ago, but the sign was gone in a week's time. The neighbor said he understood that the current owner had received a great offer on a job out west and was selling.

I do not know anyone who actually knows the current owner of the house. Perhaps Michael White knows them since he is the next door neighbor?

Regards,
Stuart

Notary Public, State of Massachusetts and shown to be
a duly qualified Notary Public in the County of Suffolk, City of Boston, State of Massachusetts, and shown to be
a duly qualified Notary Public in the County of Suffolk, City of Boston, State of Massachusetts, and shown to be
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Notary Public, State of Massachusetts and shown to be

STATE OF MASSACHUSETTS

County of Suffolk

Notary Public, State of Massachusetts and shown to be

Notary Public, State of Massachusetts and shown to be

Notary Public, State of Massachusetts and shown to be

Notary Public, State of Massachusetts and shown to be

Notary Public, State of Massachusetts and shown to be

Notary Public, State of Massachusetts and shown to be



No Title Continuation
Suffolk Bay 23

As you know, BTA/BOLT owns a parcel of land located on Highland Avenue, which abuts your property. The purpose of this letter is to explain some activities that will be taking place on the BTA/BOLT property over the upcoming months.

As part of BTA/BOLT's ongoing efforts to make its properties and trails more accessible to members of the community, we will be creating a parking area for visitors to this property, so that they no longer have to park their cars on the street. We would like this parking area to be unobtrusive, and believe that simply clearing a small area on the street side of the stone wall, rather than creating a driveway through the stonewall onto the BTA/BOLT property itself, is the most unobtrusive and desirable solution. The parking area will not be paved, but will simply be a small area cleared of brush and trees large enough for two cars to park perpendicular to the street.

As you know, one of the trails on the BTA/BOLT property ultimately crosses onto your property. It is our understanding that you may not be comfortable with members of the public using a trail that goes across your property. For this reason, we had a survey done of the BTA/BOLT property so that we would have a better understanding of the boundaries, and would be better able to take steps to discourage individuals who are enjoying the BTA/BOLT property from inadvertently crossing the boundary onto yours. It is our plan to make a small cut in the stone wall at the parking area (large enough for walkers and hikers, but not for cars) and place a small sign, so that people enter the property at this location instead of at your driveway entrance. We also plan to create a new trail within the boundary of the BTA/BOLT property, and place small trail markers in the grassy area between the stone wall and the wooded area, and within the wooded area itself, to guide walkers and hikers up the new trail and away from the part of the trail that goes across your property.

We do need to ask that you remove the "No Trespassing" sign that is located on that portion of the driveway that leads to your house, because the sign is actually located on the BTA/BOLT property, and the sign may discourage people from walking across land that is in fact open to the public. There is a mirror on a tree adjacent to the driveway that is located on the BTA/BOLT property. BTA/BOLT has no objection to the mirror remaining if you feel it makes use of the driveway safer.

Finally, we do appreciate your taking the time to mow the grassy portion of the BTA/BOLT property between the stone wall and the woods. Keeping up with ongoing maintenance of the BTA/BOLT properties and trails across town is a challenge, and can only be accomplished with the efforts of many members of the community.

Our ultimate plan with respect to this grassy area has not been finalized. We are considering options such as planting several native trees and shrubs, planting wildflowers, and/or putting up birdhouses, in sections of this grassy area. We will keep you apprised of our plans with respect to this grassy area, as it may impact what portions of this area can continue to be mowed, if you choose to continue to volunteer your services in this regard. Since you are probably most familiar with this section of the BTA/BOLT property, we would welcome any suggestions you may have as how we can make this area "wildlife friendly" and scenic.

Shaven Crown

Donated to BTA/BOLT from the Terra Foundation in May, 1997, this 35-acre parcel is located on Highland Road between #26 and #30. Essex County Greenbelt Association holds the Conservation Restriction on the property, which was recorded on 9/6/89. This is a beautiful track of land featuring a mixed species woodland, with some areas dominated by pines and other with mixed hard woods. In the summertime, there is an abundance of ferns. There also is a large vernal pool found on this property. Animals who call Shaven Crown home include White Tailed Deer, Barred Owls and Gardner Snakes.

Revision: A/B/C/D/E/F/G/H

Location >>>>>>>>>> TRAIL HEAD (street/other) TO: TRAIL HEAD (street/other)

BOXFORD TAX-MAP LOCATION #'S: 14 / / / / / / / /

OWNER(S)/BUTTER(S): # 30 HIGHLAND Rd -
128 SPEDFORD RD - STAUB residence 259
1965
OTHERS

TRAIL STATUS CODE: Conservation Restriction (CR) Y-N Trail Deed Easement (TD) (Y)-N Date: _____
Registry of deed info: Tax map parcel #'s _____ Book & Page #'s _____ Date: _____

Boxford Trails Ass'n/Boxford Open Land Trust 33-35 AC (BTA/BOLT)
Bay Circuit Trail _____ (BCT) Essex County Greenbelt _____ (ECGB)

TRAILS: PUBLIC—(PB) PRIVATE—(PR) CLOSED—(C) OPEN—(O)
 PERMISSION NEEDED—(PN) WRITTEN—(W) VERBAL—(V) TRAIL to BE opened—(B) PARKING—(P)

USE RESTRICTIONS: WALK (Y)N. HORSE (Y)N. MOUNTAIN BIKE Y/N. MOTORIZED Y/N

TRAIL DESCRIPTION: (How accessed, landmarks in finding trail heads, list multiple trail heads, distances and directions.)

RAIL DESCRIPTION: (How accessed, landmarks in finding trail heads, list multiple trail heads, distances and directions.)

Wide gentle trail up Crown Hill passing vernal pool. No trail.
Property owned by BTA/BOLT with trail access easement.
Parking for 1-2 cars @ Highland Rd entrance.
Posted as Wildlife refuge. No trespassing signs @
Highland Rd address but driveway is on BTA property with public ac
at Bear Town

SKETCH of TRAIL:

**Tele #**

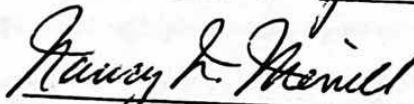
STATEMENT OF DONEE

TO: The Terra Foundation, Inc.

This document will serve to acknowledge receipt of your donation of 35 acres of land further described as Lot 3 Highland Road, Boxford, MA, to BTA/Bolt, Incorporated, on May 9, 1997. The use of this land will be related to the tax exempt purpose as described in the Articles of Incorporation of BTA/Bolt Incorporated.

BTA/Bolt, Incorporated is a 501(c)(3), exempt under IRC Sec. 501(a) and is not a non-operating foundation. Adequate books and records will be maintained and made available to the IRS upon request.

Signed this 6 day of June, 1997



Nancy Merrill, President
BTA/Bolt, Incorporated

jag@tollund.com

From: Sean Fennell <sfennell@fennell-engineering.com>
Sent: Tuesday, September 29, 2015 11:06 AM
To: Mymol@aol.com
Cc: amsbox@comcast.net; aw1718@verizon.net; JAG@tollund.com; pwelch@danforthcarey.com; Isabella Fennell
Subject: Re: Mowing of Shaven Crown
Attachments: Conservation restriction highlighted.pdf; Untitled attachment 00003.htm

See page 3 & 4 of the attached conservation restriction. I have highlighted the relevant sections.

I realize that you have a different conservation restriction from your purchase in 1997 but the CR enclosed is what is referenced with the deed to my house so it is the only CR that we consider to be correct when it comes to our rights as owners of Lot 2 when it comes to activities we are deeded to have the rights to perform on your lot 3.

This is the CR that gives me the right to have a portion of my driveway located on Lot 3.

Not that it is any of your business what we do with our property but to explain.... we mow the area around our driveway easement on both sides to prevent the growth of trees. We stopped mowing for a period of time a few years ago and within 12 months there were trees growing up.

I personally plow our driveway in the Winter. Our driveway is steep and over 2,000 feet long. When the snow banks get deep on both sides it becomes extremely difficult to plow and the last thing I want is more trees getting in the way of the places that we stockpile snow in the Winter.

I would prefer to have a civil discussion in person about this rather than receive another of your snide threatening emails so please contact me at the number below if you would like to discuss.

Sean Fennell
978-352-6500

jag@tollund.com

From: Sean Fennell <sfennell@fennell-engineering.com>
Sent: Thursday, September 24, 2015 2:39 PM
To: Mymol@aol.com
Cc: amsbox@comcast.net; pwelch@danforthcarey.com; aw1718@verizon.net;
JAG@tollund.com
Subject: Re: Mowing of Shaven Crown

I have a deeded right to maintain that property of i so choose.

Sean Fennell, PE

On Sep 24, 2015, at 2:34 PM, Mymol@aol.com wrote:

Dear Mr. Fennell -

This is to notify you that we do not wish to have our land mowed by your landscaping service.

Thank you for your attention to this.

Natasha Grigg for BTA/BOLT

jag@tollund.com

From: Sean Fennell <sfennell@fennell-engineering.com>
Sent: Wednesday, July 15, 2015 7:59 AM
To: jag@tollund.com
Cc: Isabella Fennell
Subject: Granite markers
Attachments: Conservation Restriction.pdf

Jessica,

Thanks for reaching out to us regarding your proposed installation of granite markers on the conservation land. I have enclosed a copy of the conservation restriction that spells out what can be done on the conservation land in detail. For reference the conservation land is known as "lot 3" in this document and our property is known as "lot 2" (see survey on last page)

At the bottom of page 5 section 4 it reads "no rights to enter the premises are granted hereby to the grantee". the document goes on to state that access to use the footpaths is allowed by "abutting neighbors". Section 3 states that we must be notified if you intend to enter the premises. No rights to enter the conservation land are granted to the public in this document. To my knowledge we have never been notified once that your organization intended to enter the land.

We feel that your organization does not have the legal right to be advertising the conservation land with posted signs, parking spaces and brochures as available for the public to walk through as that is in violation of the legal agreement that goes with the property. We hereby request that you stop all these activities.

On page 2 1.a states in part that no signs shall be posted. We feel that your BTA/Bolt sign is in violation of this part of the agreement and should be removed. We also feel that installing granite markers at the lot corners is in violation of this section which expressly prohibits installation of "permanent structures on or underground"

We request that your organization abide by the conservation restriction that goes with the property.

Sean Fennell
30 Highland Rd
Boxford, MA 01921
978-352-6500